

25SMCV03853 25SMCV03853

County: los-angeles

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 21, 2026

CASE NUMBER

25SMCV03853

MOTION

Motion to Vacate Judgment

MOVING PARTY

Plaintiff Khaled Ouaz a/k/a "Kade Wise"

OPPOSING PARTIES

Defendants Twentieth Century Fox Film Corporation dba 20th

Television f/k/a Twentieth Century Fox Television (incorrectly sued as "20th Century Studios, Inc. f/k/a 20th Century Fox Television, Inc.");

Lee Daniels Entertainment, Ltd.; Imagine Entertainment, LLC; Dana Walden;

Gary Newman; Lee Daniels; Sanaa Hamri; Brian Grazer (incorrectly sued as Brian Glazer); Carolyn Cassidy; Diane Ademu-John; Ilene Chaiken; Craig Brewer (incorrectly sued as “Craig Berger”); Joshua Allen; Eric Haywood; and Jamie Rosengard

MOTION

On July 28, 2025, Plaintiff Khaled Ouaaz a/k/a Kade Wise (“Plaintiff”) brought suit against Defendants 20th Century Television, Inc., fka 20th Century Fox Television, Inc. (“20th Century”); Lee Daniels Entertainment, Ltd. (“Lee Daniels Ent.”); Danny Strong Productions (“Danny Strong Prod.”); Imagine Entertainment, Inc. (“Imagine”); Dana Walden (“Walden”); Gary Newman (“Newman”); Lee Daniels (“Daniels”); Danny Strong (“Strong”); Sanaa Hamri (“Hamri”); Paolo Nieddu (“Nieddu”); Brian Grazer (“Grazer”); Carlito Rodriguez (“Rodriguez”); Jonnie Davis (“Davis”); Carolyn Cassidy (“Cassidy”); Howard Kurtzman (“Kurtzman”); Brett Mahoney (“Mahoney”); Diane Ademu-John (“Ademu-John”); Ilene Chaiken (“Chaiken”); Craig Berger (“Berger”); Matt Pyken (“Pyken”); Dennis Hammer (“Hammer”); Joshua Allen (“Allen”); Eric Haywood (“Haywood”); Jasheika James; Janeika James; Dianne Houston (“Houston”); and Jamie Rosengard (“Rosengard”).

The operative First Amended Complaint (“FAC”) was filed on September 15, 2025, alleging eighteen causes of action as follows:

1.
Breach of Contract
2.
Intentional Misrepresentation
3.
Fraudulent Concealment
4.
Actual Fraud
5.
Defamation of Character
- 6.

Breach of Implied Covenant of Good Faith and Fair
Dealing

7.

Intentional Interference with Contractual Relations

8.

Intentional Interference with Prospective Economic
Relations

9.

Demotion Discrimination

10. Promotion

Discrimination

11. Political

Discrimination

12. Intersectional

Discrimination

13. Disparate

Impact Discrimination

14. Retaliation

15. Right

of Publicity

16. Civil

Conspiracy

17. Intention

Infliction of Emotional Distress

18. Negligence

On April 30, 2026, the Court sustained the demurrer of Defendants 20th
Century, Lee Daniels Ent., Imagine, Walden, Newman, Daniels, Hamri, Grazer,

Cassidy, Ademu-John, Chaiken, Brewer, Allen, Haywood, and Rosengard (collectively, “Prevailing Defendants”) without leave to amend.

Judgement was entered in favor of the Prevailing Defendants on June 18, 2026, and the clerk provided notice by mail on June 22, 2026.

Plaintiff now moves to vacate the judgment pursuant to Code of Civil Procedure section 473, subdivision (b) and “to the extent necessary and within the Court’s jurisdiction, from the April 30, 2026 determination denying leave to amend as futile.” Prevailing Defendants oppose the motion.

ANALYSIS

I.

PROCEDURAL ISSUES

“[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order[.]” (Code Civ. Proc., § 916, subd. (a).)

“The purpose of the automatic stay provision of section 916, subdivision (a) is to protect the appellate court’s jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it.” (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 189 [cleaned up].)

Specifically, “the trial court’s power to enforce, vacate or modify an appealed judgment or order is suspended while the appeal is pending.” (Id. at pp. 189–190.)

Here, Plaintiff appealed the subject Judgment on August 20, 2026.

II.

DISCRETIONARY AND MANDATORY RELIEF

“Proceeding to judgment in the absence of a party is an extraordinary and disfavored practice in Anglo–American jurisprudence: The policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (Au-Yang v. Barton (1999) 21 Cal.4th

958, 963 [cleaned up].)

Code of Civil procedure section 473 “includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 25 (hereafter Minick).) “Section 473 is a remedial statute to be “applied liberally” in favor of relief if the opposing party will not suffer prejudice. Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. Unless inexcusable neglect is clear, the policy favoring trial on the merits prevails.” (Minick, supra, 3 Cal.App.5th at p. 24 [cleaned up].)

The party or the legal representative must seek such relief “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b); see Rappleyea v. Campbell (1994) 8 Cal.4th 975, 980 [“because more than six months had elapsed from the entry of default, and hence relief under section 473 was unavailable”]; People v. The North River Ins. Co. (2011) 200 Ca.App.4th 712, 721 [motion for relief under section 473 must be brought “within a reasonable time, in no case exceeding six months”]). “The six-month limit is mandatory; a court has no authority to grant relief under section 473, subdivision (b), unless an application is made within the six-month period.” (Arambula v. Union Carbide Corp. (2005) 128 Cal.App.4th 333, 340, citations omitted.)

A.

DISCRETIONARY

RELIEF

Per Code of Civil Procedure section 473, subdivision (b), a court may “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.”

B.

MANDATORY

RELIEF

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

(Code Civ. Proc., § 473, subd. (b).) "In considering whether the trial court properly denied relief under section 473(b), the first question is the sufficiency of defendants' showing of attorney fault, if believed, to trigger the mandatory relief provisions of that statute." (Standard Microsystems Corp. v. Winbond Electronics Corp. (2009) 179 Cal.App.4th 868, 896, disapproved on other grounds by Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830 (hereafter Standard).) "Under section 473(b), a party is entitled to relief from a default and resulting judgment whenever, on timely application for relief, his attorney 'attest[s] to his or her mistake, inadvertence, surprise, or neglect' in connection with the default or the judgment." (Ibid.)

Because Plaintiff is self-represented, there is no attorney mistake, inadvertence, surprise, or neglect warranting mandatory relief.

Rather, Plaintiff seeks discretionary relief on the grounds that "mistake, inadvertence, surprise, and excusable neglect materially impaired Plaintiff's ability at the April 21, 2026 demurrer hearing to marshal and articulate additional allegations responsive to the Court's curability inquiry[.]" (Motion at p. 2.)

In support, Plaintiff advances his own declaration, which provides as follows:

3. When I prepared for the April 21, 2026 hearing, I understood my principal task to be defending the legal sufficiency of the allegations already contained in my First Amended Complaint ('FAC'). The FAC asserted 18 causes of action and consisted of more than 140 pages of allegations, exclusive of approximately 50 pages of exhibits.

4. Immediately preceding the April 21 hearing, I was simultaneously managing numerous overlapping obligations without counsel and while proceeding on a fee waiver. Among other matters, I was addressing alternative-service proceedings beginning around April 1, an application concerning expanded briefing on or around April 3, the April 8 demurrer opposition deadline, continuing service diligence, and additional filings on April 18 concerning completion of service diligence and clarification of Defendants' characterization of my knowledge and suspicions.

5. I was also experiencing substantial financial hardship and attempting to preserve basic income while litigating this action against numerous represented Defendants. The volume and timing of the proceedings required me to learn unfamiliar procedural requirements while simultaneously researching, drafting, serving, and filing substantial materials.

6. During this same period, I experienced unusual and disturbing occurrences at my residence that substantially affected my concentration and sleep. I do not represent in this Declaration that those occurrences were caused by, connected with, or attributable to any Defendant, and I do not offer them for that purpose. I state them solely because they were circumstances actually affecting my mental concentration, sleep, and ability to prepare during the period immediately preceding the April 21 hearing.

7. By April 20 and 21, the combination of overlapping litigation obligations, financial hardship, personal circumstances, impaired concentration, and minimal sleep had left me substantially overwhelmed.

8. Although an April 20 Tentative Ruling addressed statute-of-limitations issues, under those circumstances I did not adequately review, absorb, and reorganize my preparation around the dispositive framework reflected in that tentative before appearing the following morning. My failure to do so was not intentional and was not a tactical decision to disregard the Court's analysis. I was attempting to manage numerous immediate obligations while operating with substantially impaired concentration and insufficient rest.

9. Consequently, I arrived at the April 21 hearing prepared primarily to defend the sufficiency of what I had already pleaded. I had not prepared a separate inventory of additional allegations that

could be added to cure deficiencies if the Court determined the existing pleading insufficient.

10. During the hearing, I realized that the Court's inquiry was materially different from the presentation for which I had prepared. I became nervous and had difficulty retrieving, organizing, and articulating from memory additional factual allegations accumulated across years of events and a lengthy pleading.

11. When asked what additional allegations I could provide, I stated in substance that I had not prepared or re-memorized those portions of the FAC and requested an opportunity to review it. I did not intend that statement as a representation that no additional facts existed, that amendment was impossible, or that I was abandoning an opportunity to amend. To the contrary, I was attempting to communicate that I needed an opportunity to identify and organize the responsive material rather than improvise it inaccurately.

12. My inability to marshal that material spontaneously at the hearing was therefore a failure of preparation and presentation under the circumstances described above, not an intentional concession concerning the existence of additional allegations.

(Ouaaz
Decl. ¶¶ 3-12.)

Plaintiff's proffered mistake, inadvertence, surprise, and/or excusable neglect was failing to adequately prepare for and respond to the Court's questioning at the April 21 hearing due to (1) a lengthy operative complaint (which Plaintiff drafted) and (2) competing demands for Plaintiff to serve the dozens of named defendants, exacerbated by Plaintiff's financial hardship and unspecified incidents at his residence affecting his sleep and concentration.

Plaintiff also lists facts he could add to the complaint, which demonstrate additional reasons why Plaintiff contemporaneously rationalized away the behavior giving rise to his complaint instead of diligently investigating and pursuing his claims:

Based upon what I observed and what was

communicated to me, I understood those developments as ordinary creative and production decisions rather than information revealing unlawful conduct directed toward me. [...]

16. I likewise did not understand the relative inaccessibility of certain visiting producers to mean that they were avoiding me because of concealed wrongdoing. Production was fast-moving and hierarchical, and my contemporaneous experience with cast members, crew members, and others included substantial positive professional interactions.

17. I had requested removal of the Keffiyeh used with my character, and that request was denied. At the time, I understood the denial to reinforce that the symbolism was wanted or approved as part of the creative conception of a politically conscious Muslim rapper. [...]

18. Nor did I understand the fact that my series-regular option was not exercised as evidence of wrongdoing. At the time, I understood that producers and networks routinely retain discretion concerning whether characters are expanded, performers return, or contractual options are exercised. [...]

20. Those circumstances reinforced my contemporaneous understanding that an option or initial publicity did not guarantee promotion, continuation, or series-regular status. I therefore did not interpret my own non-pickup as naturally revealing discrimination, retaliation, blacklisting, or another concealed unlawful motive.

21. After my production engagement concluded, Defendants Rodriguez and Hamri did not meaningfully engage with my subsequent outreach. At that time, I attributed this to ordinary entertainment-industry considerations. I understood that my character had been given an opportunity that did not develop into the level of audience exposure or momentum I had hoped for, and I believed the production had simply moved forward.

22. I did not understand their lack of engagement as evidence that unlawful activity had occurred behind closed doors. [...]

(Ouaaz

Decl. ¶¶ 15-22.)

Plaintiff then explains why these

facts were not originally included in the FAC:

I therefore made a deliberate, good-faith effort to focus an already lengthy complaint principally upon conduct I attributed to the named Defendants.

25. I did not include every surrounding communication, production circumstance, interaction with cast or crew, comparison involving another performer, or other contextual fact known to me. I understood many such matters as secondary or tertiary context rather than material allegations of wrongdoing attributable to Defendants. [...]

28. I did not then appreciate that some of the very contextual circumstances I regarded as unnecessary to the pleading could later become important to the Court's assessment of what I should reasonably have suspected in 2018 or what additional allegations I could offer to address inquiry notice.

(Ouaaz

Decl. ¶¶ 24-25, 28.)

Plaintiff further explains that he did not fully appreciate the importance of articulating new facts until after the April 21 hearing, the April 30 Order, and the June 10 proceeding:

29. Only after the April 21 hearing and the April 30 Order did I more fully appreciate the significance the Court placed upon those circumstances and upon my inability at the hearing to identify additional allegations spontaneously.

30. Accordingly, the preexisting contextual facts identified in my Motion and proposed amendments are not facts I recently invented or intentionally withheld. They are matters whose significance to the Court's dispositive framework I did not adequately understand or marshal at the April 21 hearing.

31. After the April 21 hearing, I immediately attempted to respond to what I understood had occurred. On or about April 22, I attempted to present supplemental material addressing issues raised at the hearing.

32. After the April 30 Order, I continued reviewing the FAC, the underlying communications, and the Court's reasoning to determine what additional allegations and materials could address the deficiencies identified by the Court. [...]

THE JUNE 10 PROCEEDING CLARIFIED THE IMPORTANCE OF THE EARLIER PRESENTATION FAILURE

(Ouaaz
Decl. ¶¶ 29-32 and p. 30:703-704.)

The Court does not find Plaintiff has adequately demonstrated mistake, inadvertence, surprise, or excusable neglect warranting vacation of the judgment or the April 30 ruling upon which that judgment is based.

“[W]hen a litigant is self-represented, a judge has the discretion to take reasonable steps, appropriate under the circumstances and consistent with the law and the canons, to enable the litigant to be heard.” (See also ABA Model Code of Jud. Conduct, canon 2, rule 2.2, com. 4 “[i]t is not a violation of this Rule [regarding impartiality and fairness] for a judge to make reasonable accommodations to ensure pro se litigants the opportunity to have their matters fairly heard”].) The canons and commentary thus provide a path to ensure a self-represented litigant can be fairly heard on the merits while the court maintains its impartiality and does not assume (or appear to assume) the role of advocate or partisan. (See Cal. Code Jud. Ethics, canon 3 [“a judge shall perform the duties of judicial office impartially, competently, and diligently”].) (Holloway v. Quetel (2015) 242 Cal.App.4th 1425, 1434.)

Here, the Court did exactly that by repeatedly asking Plaintiff during the April 21 hearing if he could articulate any additional facts that could be added to the complaint to cure the deficiencies identified by the Court.

Rather than answer the question being asked of him or request a continuance to prepare such information, in light of Plaintiff's apparent sleep issues and other personal problems, Plaintiff simply repeated that the FAC already adequately alleged sufficient facts to state each cause of action.

Other than giving Plaintiff numerous additional opportunities at the hearing to demonstrate why he should be given an opportunity to re-plead his claims, despite his initial failures to do so in written opposition to the motion and in his initial oral argument presentation, “[a] party proceeding in propria persona ‘is to be treated like any other party and is entitled to the same, but no greater[,] consideration than other litigants and attorneys.’” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 985.) Indeed, “the in propria persona litigant is held to the same restrictive rules of procedure as an attorney.” [Citation.]” (First American Title Co. v. Mirzaian (2003) 108 Cal.App.4th 956, 958, fn. 1; see also Nwosu v. Uba (2004) 122 Cal.App.4th 1229, 1246-1247.)

As applicable to an attorney, Plaintiff is required to manage the complexities of the lengthy complaint he drafted and the competing demands of service and motion practice pertaining to his case,. Further, to the extent Plaintiff was physically or mentally unable to advocate for himself at the April 21 hearing, he was obligated to timely alert the Court of that fact and request a hearing continuance, just like any attorney would do so.

Plaintiff's failure to adequately prepare to address all issues raised in the tentative ruling, or to timely alert the Court of his inability to argue at the April 21 hearing do not constitute mistake, inadvertence, surprise, or excusable neglect warranting discretionary relief from the resulting ruling and judgment.

Further, the additional facts Plaintiff now proffers demonstrate only additional reasons why Plaintiff failed to diligently pursue his claims within the applicable statutes of limitations. They do not form any basis to toll the statute of limitations. As such, Plaintiff has not demonstrated the mistaken, inadvertent, or neglectful failure to articulate facts that would have made any difference in the Court's April 30 ruling.

This point is underscored by the fact that Plaintiff himself admits he did not fully appreciate the legal significance of what the Court was asking of him until after the June 30 proceedings. But Plaintiff's ignorance of the law is also not mistake, inadvertence, surprise, or excusable neglect warranting relief from the judgment. “Mistake is not a

ground for relief under section 473, subdivision (b), when 'the court finds that the 'mistake' is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law. . . .'" (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206, citing 8 Witkin, Cal. Procedure (5th ed. 2008) Attack on Judgment in Trial Court, § 155, p. 749.)

CONCLUSION

AND ORDER

Plaintiff's motion to vacate the judgment is denied because the Court lacks jurisdiction to grant it while Plaintiff's appeal is pending and because Plaintiff has failed to demonstrate any mistake, inadvertence, surprise, or excusable neglect warranting discretionary relief.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 21, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court